

The logo for the Digital Services Act (DSA) features twelve yellow stars arranged in a circle on a dark blue background. The letters "DSA" are written in white, bold, sans-serif font in the center of the circle.

DSA

The title "Digital Services Act" is displayed on a purple-to-blue gradient background. It is surrounded by twelve yellow stars, with six stars positioned to the left and six to the right of the text.

**Digital
Services
Act**

DSA - Overview

The Digital Services Act (DSA) is a major piece of legislation enacted by the European Union (EU) to create a safer, more accountable online environment.

Adopted in October 2022, the DSA establishes clear rules and responsibilities for online platforms and digital services operating in the EU to ensure transparency, user safety, and protection of fundamental rights.

The Digital Services Act (DSA) and the Digital Market Act (DMA) form a single set of rules that apply across the whole EU. They have 2 main goals:

- 1. To create a safer digital space in which the fundamental rights of all users of digital services are protected**
- 2. To establish a level playing field to foster innovation, growth, and competitiveness, both in the European Single Market and globally.**



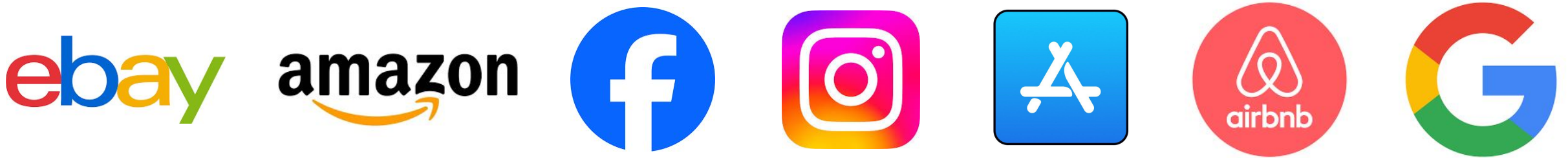
What are classified as 'digital services'?

Digital services include a large category of online services, from simple websites to internet infrastructure services and online platforms.

The rules specified in the DSA primarily concern **online intermediaries and platforms**. For example, online marketplaces, social networks, content-sharing platforms, app stores, and online travel and accommodation platforms.

The DSA includes specific rules for very large online platforms (VLOPs) and very large online search engines (VLOSEs). These are online platforms and intermediaries that have more than 45 million users per month in the EU.

They must abide by the strictest obligations of the Act.



Why are the DSA and DMA necessary?

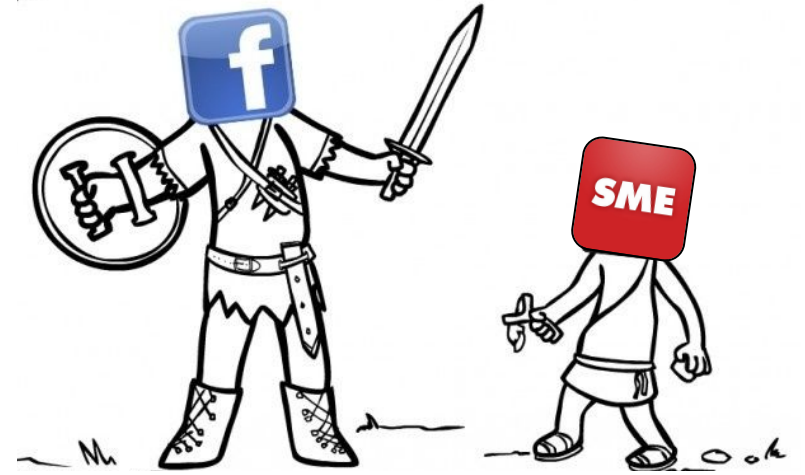
Digital services impact our lives in many different ways. We use them to communicate with each other, shop, order food, find information, watch films, listen to music and more.

Digital services also make it easier for companies to trade across borders and access new markets.

While there are many benefits of this digital transformation, there are also problems.

For example, some large platforms control important ecosystems in the digital economy. They have emerged as gatekeepers in digital markets, with the power to act as private rule-makers.

Their rules sometimes result in unfair conditions for businesses using these platforms and less choice for consumers.

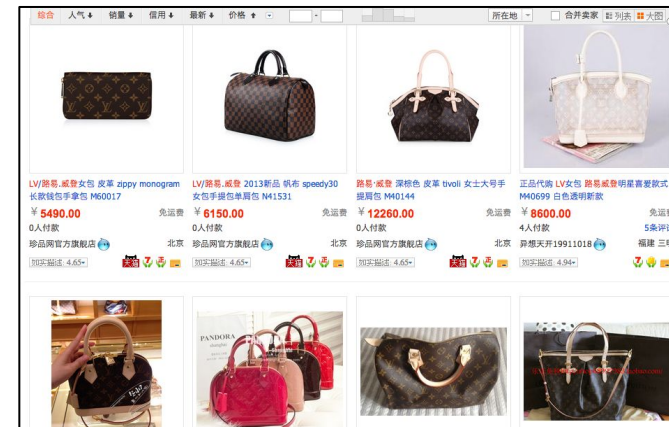


Why are the DSA and DMA necessary?

Another concern is the trade and exchange of illegal goods, services and content online. And, online services are being misused by manipulative algorithmic systems to amplify the spread of disinformation, and for other harmful purposes.

These challenges and the way platforms address them have a significant impact on fundamental rights online.

Therefore, the European Union adopted a modern legal framework that ensures the safety of users online, establishes governance with the protection of fundamental rights at its forefront, and maintains fair and open online platform environment.



Who does the DSA apply to?

The DSA applies to all online intermediaries, regardless of their type. All intermediary services provided via the internet are subject to the provisions. However, the obligations vary depending on the nature of the intermediary service provided.

These obligations are tiered and cumulative, meaning that higher categories of intermediary service providers will have more obligations than lower categories. For example, the obligations of a social media platform would be more stringent than those of a search engine.

The DSA applies to **four categories** of online intermediaries:



1. VLOP's and VLOSE's



Very large online
platforms and large
online search engines

Very significant online platforms and search engines present distinctive challenges in the propagation of illegal content and societal risks.

Special regulations are anticipated for platforms reaching beyond 10% of the European consumer base of 450 million, and the DSA offers a compiled list of designated platforms.



2. Online Platforms & Marketplaces



Online platforms and marketplaces

Online platforms serve as hubs connecting sellers and consumers, embracing diverse entities like online marketplaces, app stores, collaborative economy platforms and social media platforms.



3. Hosting Services



Hosting services

Hosting services, encompassing cloud and web hosting services, fall under the umbrella of online platforms, subject to regulatory considerations.



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4. Intermediary Services



Intermediary services

Intermediary services providing network infrastructure, such as internet access providers and domain name registrars, also fall within the regulatory framework, which encompasses hosting services.



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Key Provisions of the DSA



1. Content Moderation

Platforms must promptly remove illegal content once it is reported. They must have clear, transparent policies for content moderation. Users can challenge content removal or account suspensions.



2. Transparency in Algorithms

Platforms must disclose how their algorithms prioritise or recommend content. Users must have control over algorithmic recommendations (e.g., turning off personalised feeds).



3. Protection Against Harmful Content

Platforms must take measures to mitigate the spread of misinformation, hate speech, and harmful content. Stricter rules apply to VLOPs due to their significant societal impact.



4. Advertising Transparency

Platforms must clearly label ads and disclose who paid for them. Targeted advertising based on sensitive user data (e.g., race, religion, political views) is restricted.

Key Provisions of the DSA



5. Risk Assessments

VLOP's must conduct regular assessments of risks posed by their services, such as the spread of disinformation or threats to mental health.



6. Access for Researchers

Platforms must provide access to their data for independent researchers to study societal impacts, such as misinformation.



7. Consumer Protections

Online marketplaces must verify the identity of sellers to prevent the sale of illegal or counterfeit goods.



8. Fines and Penalties

Non-compliance can lead to fines of up to 6% of a company's global annual revenue.

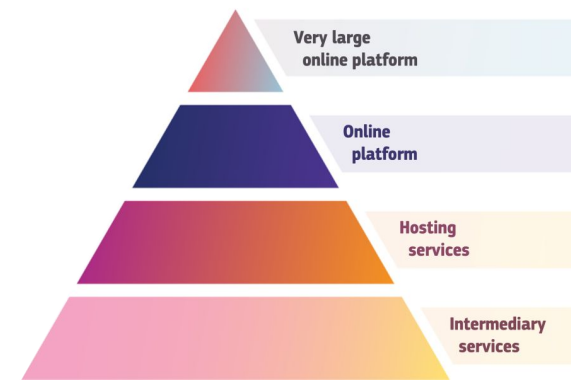
Additional provisions for VLOP's and VLOSE's

Very large online platforms and search engines are defined as online intermediaries with more than 45 million monthly users in the EU.

Since they are so big, these platforms have built an important role in our societies. But with this role comes responsibilities. This is why the Digital Services Act sets out strict rules for VLOP's and VLOSE's.

Among other things, they must:

- Identify and address any systemic risks their platforms pose. Systemic risks are considered those that affect our society as a whole, such as those related to fundamental rights, illegal content, public security and elections, gender-based violence, public health, protection of minors and mental and physical well-being.
- Publish 6-monthly transparency reports, containing information on their content moderation decisions and yearly audits
- Establish a point of contact for users and authorities
- Report criminal offences
- Make available a library of ads shown on their platform
- Give vetted researchers access to data on systemic risks



Supervising and enforcing the rules of the DSA

The enforcement of DSA rules is done jointly between the European Commission and all EU member states.

The European Commission is responsible for supervising platforms that have been named as VLOP's or VLOSE's.

Digital Services Coordinators, appointed by each EU Member State, are responsible for overseeing that all other online platforms based in their country are respecting the DSA. They will cooperate and exchange information in the Board of the Digital Services Coordinators.

